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|     |                                        | <p>In light of the above, the Motion to Set Aside is GRANTED. Hertz is ordered to file and serve its answer to the complaint within 20 days.</p> <p>Moving party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 106 | Kirton v Selene Finance, 2025-01481861 | <p>DEMURRER TO AMENDED COMPLAINT – SUSTAINED WITH LEAVE TO AMEND</p> <p>Defendants Selene Finance LP and U.S. Bank Trust, as trustee of the VRMTG Asset Trust’s (together, “Defendants”) unopposed Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED with leave to amend.</p> <p>The Court construes Plaintiff’s failure to oppose the demurrer as an abandonment of Plaintiff’s claims or an admission that the demurrer has merit. (See Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 [“Plaintiffs did not oppose the County’s demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) The failure to challenge a contention in a brief results in the concession of that argument. (DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].)</p> <p>Plaintiff attempted to file a Second Amended Complaint which was rejected; Plaintiff believes she can amend the complaint to cure the deficiencies identified by the demurrer. The Court will therefore grant Plaintiff one final opportunity to amend the pleading. Plaintiff shall file her Second Amended Complaint within 20 days of this order.</p> <p>Defendant to give notice.</p> |

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|     |                                     | CASE MANAGEMENT CONFERENCE – CONTINUED<br>TO 09/21/2026 at 1:30 p.m.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 107 |                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 108 | Lorenze v. Pakbaz,<br>2025-01532139 | <p>DEMURRER TO AMENDED COMPLAINT –<br/>SUSTAINED IN PART WITH LEAVE TO AMEND (as to 3<sup>rd</sup> cause of action for violation of patient access to health records act); OVERRULED AS TO ALL OTHER ISSUES</p> <p>Plaintiff Alexis Lorenze sued Defendants Zahra Pakbaz, M.D. and the Regents of the University of California for Medical Battery, Violation of the Elder Abuse and Dependent Adult Civil Protection Act, Violation of Patient Access to Health Records Act (Health &amp; Safety Code § 123110), and Breach of Fiduciary Duty (Candor). (There are other causes of action to which Defendants do not demur; they will not be discussed to avoid confusion.) Defendants demur to causes of action 1, 2, 3, and 5 on the ground they fail to state facts sufficient to constitute a cause of action against Defendants, and on the ground the fifth cause of action for breach of fiduciary duty is duplicative of the medical battery cause of action. Defendants also argue causes of action 1-5 are pleading artifices to avoid the constraints of the Medical Injury Compensation Reform Act of 1974.</p> <p>Plaintiff alleges she was a patient at UCI Medical Center suffering from a blood disorder and from a parvovirus. Plaintiff alleges she was a candidate for a treatment that required vaccinations, and those vaccinations could not be administered until her infection was under control. Nevertheless, hospital personnel administered 3 vaccines (not the ones Plaintiff was told she would be receiving) and she immediately suffered a severe and debilitating reaction. Plaintiff also alleges the doctor who prescribed the special treatment had a financial interest in the treatment.</p> |